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State of Minnesota
12/2/2025 1:55 PM

STATE OF MINNESOTA **DISTRICT COURT**

COUNTY OF DAKOTA **FIRST JUDICIAL DISTRICT**

Lexington Flats, Limited Partnership,

Plaintiff,

v.

Dena Sazama, Bradley Crowe, John Doe, Jane Doe,

Defendants.

Court File No. 19AV-CV-25-3477
Case Type: Eviction (UD)
Judge: Dannia Edwards

DEFENDANTS DENA SAZAMA'S AND BRADLEY CROWE'S MEMORANDUM OF LAW IN SUPPORT OF THEIR MOTION TO DISMISS EVICTION COMPLAINT WITHOUT PREJUDICE AND EXPUNGE

INTRODUCTION

Defendants Dena Sazama and Bradley Crowe (collectively, the "Tenants") submit this memorandum of law in support of their motion to dismiss without prejudice and expunge Plaintiff Lexington Flats, Limited Partnership's ("Landlord") eviction Complaint ("Complaint"). Landlord brings this holdover eviction action alleging it follows a notice to vacate or quit the tenancy. Minnesota law requires a landlord to attach a copy of any notice to vacate or notice to quit to the eviction complaint. Minnesota law mandates dismissal without prejudice and expungement of a holdover eviction complaint that does not attach the notice. Here, the Complaint fails to attach a notice. Accordingly, the Complaint fails as a matter of law and must be dismissed without prejudice and expunged.

FACTUAL BACKGROUND

Tenants rent an apartment from Landlord, located at 2977 Lexington Avenue South,

Filed in District Court
State of Minnesota
12/2/2025 1:55 PM

#104, Eagan, Minnesota 55121. Cpl., ¶ 4. Landlord filed this eviction Complaint for holdover under Minnesota Statutes Section 504B.285, Subdivision 1 on November 17, 2025. Specifically, Landlord alleges, "The tenancy was terminated effective October 31, 2025, given to Plaintiff by Defendants' advocate on August 29, 2025." *Id.* at ¶ 8. Landlord further alleges that the "notice to vacate or notice to quit that terminated the tenancy is attached to this Complaint as **Exhibit B.**" *Id.* at ¶ 9. Exhibit B is not labeled a "Notice to Vacate." Exhibit B is not labeled a "Notice to Quit." Rather, Exhibit B is labeled, "Mutual Lease Termination Agreement." *Id.* at Ex. B. Exhibit B appears to provide a mutually agreed upon lease termination effective date of October 31, 2025, as well as other proposed terms. *Id.* The signature blocks for Tenants and Landlord are empty. *Id*. Tenants remain in their rental unit. *Id.* at ¶ 10.

ARGUMENT

I. Motion for Dismissal Standard

The district court may grant a motion to dismiss a complaint if it "lack[s] of jurisdiction over the subject matter." Minn. R. Civ. P. 12.02(a). The Court "must consider only the facts alleged in the complaint, accepting those facts as true and must construe all reasonable inferences in favor of the non-moving party" in considering a motion to dismiss. *Bodah v. Lakeville Motor Express, Inc.*, 663 N.W.2d 550, 553 (Minn. 2003).

II. The Eviction Must Be Dismissed and Expunged Because the Complaint Does Not Attach a Copy of Any Notice to Vacate or Notice to Quit.

State law unequivocally sets out the requirements of an eviction action complaint and the consequences when the complaint is deficient. Minnesota Statutes Section 504B.321, Subdivisions 3 and 5. "The court must dismiss and expunge the record of any action if the person bringing the action fails to comply with this section." Minnesota Statutes Section 504B.321, Subdivision 5. One of the many jurisdictional requirements applies to holdover eviction actions

Filed in District Court
State of Minnesota
12/2/2025 1:55 PM

brought under Minnesota Statutes Section 504B.285, Subdivision 1. A holdover eviction action must "[a]ttach a copy of any notice to vacate or notice to quit…" Minnesota Statutes Section 504B.321, Subdivision 3(5).

Here, this holdover eviction Complaint is deficient and must be dismissed and expunged because it fails to attach a copy of any notice to vacate or notice to quit. Landlord asserts, "The notice to vacate or notice to quit that terminated the tenancy is attached to this Complaint as **Exhibit B.**" Cpl., ¶ 9. But Exhibit B is not a notice to vacate, and it is not a notice to quit. Instead, Exhibit B is labeled "Mutual Lease Termination Agreement" and provides proposed terms for mutual agreement of the lease on October 31, 2025. *Id.* at Ex. B. This proposed mutual lease termination is not signed by Tenants. This proposed mutual lease termination is not signed by Landlord. As a result, Landlord's Complaint is deficient because it fails to comply with Minnesota Statutes Section 504B.321, Subdivision 3(5). Landlord's deficient Complaint is a defective filing that must be dismissed without prejudice and expunged. Minnesota Statutes Section 504B.321, Subdivision 5.

CONCLUSION

Minnesota law requires an eviction complaint for holdover attach a copy of any notice to vacate or notice to quit. This requirement is jurisdictional because the statute requires dismissal and expungement of a defective complaint. Landlord's eviction Complaint for holdover fails as a matter of law and must be dismissed without prejudice and expunged because it fails to attach a copy of any notice to vacate or notice to quit.

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Filed in District Court
State of Minnesota
12/2/2025 1:55 PM

Dated: December 2, 2025

SOUTHERN MINNESOTA REGIONAL LEGAL SERVICES

By: /s/ Heather Mendiola
Heather Mendiola (Atty. Reg. #0390061)
Attorney for Defendants Dena Sazama and Bradley Crowe
450 North Syndicate Street, Suite 260
Saint Paul, MN 55104
651-222-5863
heather.mendiola@smrls.org

ACKNOWLEDGEMENT

The undersigned hereby acknowledges that costs, disbursements, and reasonable attorney and witness fees may be awarded, pursuant to Minnesota Statutes Section 549.211, to the parties against whom the allegations in this pleading are asserted.

/s/ Heather Mendiola
Heather Mendiola

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